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[TENTATIVE] ORDER DENYING JADE COURT'S MOTION ON THE JUDGMENT ON THE PLEADINGS AGAINST MASCHOLE'S CROSS-COMPLAINT

I. INTRODUCTION

Plaintiffs Qing Ye Li, individually and as successor in interest to the Estate of Xingya Zhang, and Hui Hung Zhang (collectively, "Plaintiffs") filed this action on August 20, 2024, alleging causes of action for negligent security, negligence, battery, and elder abuse against Defendants Jade Court San Gabriel, LP ("Jade"), Starboard Seaview Manager, Inc. ("Starboard"), Jerry Uy ("Uy"), Mia Constance Williams, Jaumaul Rashaud Jackson, and Does 1 through 100. The action arises from the December 26, 2022, death of Xingya Zhang.

On August 4, 2026, Jade filed the instant motion for judgment on the pleadings as to Mashcole Property Management, Inc.'s ("Mashcole") fourth cause of action for express indemnity in its Cross-Complaint. The Court subsequently advanced the hearing on the motion. On August 17, 2026, Mashcole filed an opposition. Jade waived its reply.

II. LEGAL STANDARD

"A motion for judgment on the pleadings is analogous to a general demurrer but is made after the time to file a demurrer has expired." (International Assn. of Firefighters, Local 230 v. City of San Jose (2011) 195 Cal.App.4th 1179, 1196.)

"Because the motion is, in effect, a general demurrer, the same rules apply." (Sofias v. Bank of America (1985) 172 Cal.App.3d 583, 586.) Therefore, when determining whether a complaint fails to state facts sufficient to constitute a cause of action, the court must treat the complaint as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Schonfeldt v. State of California (1998) 61 Cal.App.4th 1462, 1465.)

If the court grants the motion, it may permit the opposing party to amend the pleading. (Code Civ. Proc., § 438, subd. (h)(1).) If granting leave to amend, the court must allow the party 30 days to file the amended pleading. (Id., § 438, subd. (h)(2).) But "[i]f there is no liability as a matter of law, leave to amend should not be granted." (Schonfeldt v. State of California, supra, 61 Cal.App.4th at 1465.).

III. ANALYSIS

Jade moves the Court for a judgment on the pleadings as to the fourth cause of action for express indemnity in Maschole's cross-complaint.

Jade argues Mashcole's fourth cause of action for express indemnity fails because the Management Agreement contains only a general indemnity provision that does not extend to Mashcole's own active negligence. (Motion, pp. 7-8.) Section 8.1 requires Jade to indemnify Mashcole against claims and liabilities "arising out of or relating to" Mashcole's provision of services under the Agreement but does not expressly provide indemnity for Mashcole's own negligence or active negligence. (Id. at pp. 6-8.) Jade therefore contends that, under *Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628–630 (*Rossmoor*), the provision may cover Mashcole's passive negligence, but not its active negligence. (Id.)

Jade further argues that the allegations of the underlying Complaint, which Maschole expressly incorporates, establish active negligence because Plaintiffs allege Mashcole knew Williams and Jackson remained on the premises, knew of their aggressive behavior and threats, and encouraged or enabled their continued occupancy. (Motion, p. 5.) Jade also points to Mashcole's contractual obligations to enforce possession, respond to tenant complaints, supervise the resident manager, investigate serious complaints, take necessary action, and report serious matters to Jade. (Ibid.) According to Jade, Mashcole's alleged knowledge and acquiescence, together with its alleged failure to perform these specifically assumed contractual duties, constitutes active negligence under *Rossmoor*. (Id. at p. 8.)

Jade thus contends that Mashcole cannot avoid the effect of those allegations merely by alleging in its Cross-Complaint that any liability on its part would be "secondary, imputed, and derivative," because that characterization is a legal conclusion contradicted by the specific allegations incorporated from the underlying Complaint. (Id.)

In opposition, Mashcole argues Jade improperly seeks to resolve disputed factual issues concerning the nature of Mashcole's alleged negligence through a motion for judgment on the pleadings. (Opposition, pp. 8-10.) Mashcole contends that a motion for judgment on the pleadings, like a demurrer, tests only the sufficiency of the pleading and does not permit the Court to make factual findings concerning whether Mashcole was actively or passively negligent. (Id.)

Mashcole further argues that whether its alleged conduct constitutes active or passive negligence presents a factual question that cannot be resolved at this stage. (Opposition, pp. 13-16.) Relying on *Rossmoor*, Mashcole notes that whether conduct constitutes active or passive negligence ordinarily depends upon the circumstances of the particular case and is a question for the trier of fact; active negligence may be determined as a matter of law only where the evidence is so clear and undisputed that reasonable persons could not disagree. (Id. at, pp. 14-15.)

Mashcole also disputes Jade's characterization of the underlying allegations as necessarily establishing active negligence. Mashcole contends that at least some of Plaintiffs' allegations concern nonfeasance, including the alleged failure to discover or remedy a dangerous condition. (Opposition, pp. 15-16.) Mashcole therefore argues that whether its conduct constitutes active or passive negligence presents a factual question that cannot properly be resolved on a motion for judgment on the pleadings. (Id.)

The Court declines to grant judgment on the pleadings.

First, the Court agrees with Jade that section 8.1 of the Management Agreement is a general indemnity provision that does not expressly provide indemnity for Mashcole's own active negligence. Under *Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628–630 (*Rossmoor*), a general indemnity provision may encompass passive negligence but does not extend to the indemnitee's active negligence.

Rossmoor explains that passive negligence generally consists of mere nonfeasance, such as the failure to discover a dangerous condition or perform a duty imposed by law. Active negligence, by contrast, may exist where the indemnitee personally participates in an affirmative negligent act, has knowledge of or acquiesces in negligent acts or omissions, or fails to perform a precise duty it agreed to perform. (Id. at p. 629.) Whether conduct constitutes active or passive negligence depends upon the circumstances of the particular case and is ordinarily a question for the trier of fact. (Id. at pp. 629–630.)

Active negligence may be determined as a matter of law only where the evidence is so clear and undisputed that reasonable persons could not disagree. (Ibid.)

Here, certain allegations in the underlying Complaint, if established, could constitute active negligence under Rossmoor. For example, Plaintiffs allege that Mashcole knew of and acquiesced in the alleged dangerous conduct, encouraged or enabled the assailants' continued presence, and failed to remove them despite knowledge of their alleged dangerousness and threats. (Complaint, ¶¶ 20-24, 35, 37-39.) However, the Complaint also alleges acts and omissions that may constitute passive negligence, including failures to provide adequate security measures, policies and procedures, fencing, and security gates. (Complaint, ¶¶ 30-31.)

Through this motion, Jade asks the Court to determine from the pleadings that Mashcole was negligent and that its negligence was active. Those determinations cannot be made at this stage. Whether Mashcole was negligent and, if so, whether its negligence was active or passive, is a question for the trier of fact.

Thus, while some of the allegations against Mashcole may support a finding of active negligence, they do not establish that Mashcole was actively negligent as a matter of law. Nor do they establish that every potential basis for Mashcole's liability falls outside section 8.1. Whether Mashcole is ultimately entitled to indemnification will depend on the nature of any liability ultimately imposed upon it. Therefore, the Court cannot conclude from the pleadings that Mashcole's express indemnity claim is barred as a matter of law.

IV. ORDER

The Court DENIES Jade's motion for judgment on the pleadings.

Jade is to give notice.

Dated: August 20, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT